

RURAL ROAD (R2) OR RURAL LANE (R3)?

A classification question for the Planning Board – Article 3, Thoroughfares

Revised August 25, 2026. This memo has now been revised twice. The first version asked the Board to choose a test for applying R3 more broadly. The second reported that the information needed to apply the better test had become available and the classification had been carried out. This revision brings the figures up to date after a further round of field research, records that one inconsistency the Board was asked to resolve is now settled, and raises one new question the research itself uncovered.

WHAT HAS CHANGED SINCE THE LAST REVISION

A resident carried out field research on the small private ways in town, walking or driving them and recording what each actually serves. The Town reviewed that research and, on August 25, 2026, recorded **eleven further ways as functioning today as driveways**, each with Rural Lane (R3) as the Type that would apply if it were ever converted:

Alder Shore Road · Averill Road · Bailey Lane · Bradley Shore Road · Camp Road · Dickenson Road · Eden Lane · Elm Road · Lucky Lane · Paradise Road · Swallow Hill Road

Ten of the eleven had been carrying the automatic Rural Road (R2) classification. Camp Road was already R3 and needed only the present-use record.

This reduces what could ever be required of these ways. Nothing about the change requires any work on any existing way, and recording present use is descriptive – it is not what decides whether something is a driveway. Section 7.C.8 does that.

WHERE THE CLASSIFICATION NOW STANDS

	Originally	Last revision	Now
R3 Rural Lane	4 segments	66	76
R2 Rural Road	126 segments	70	60
Recorded as a driveway today	4	61	72

The inventory still holds 214 segments across 148 named roads, and no ownership changed.

Measured against the dwellings-served test, the R3 group remains coherent: of the 76 segments now classified R3, **48 serve one or two homes, 24 serve none on record, and 4 serve three. None serves five or more.**

WHY THIS REDUCES OBLIGATIONS RATHER THAN INCREASING THEM

R3 is the *lighter* standard. This is not a technicality; it decides how much work a property owner must do if a lane is ever improved.

	R2 Rural Road	R3 Rural Lane
Right-of-way (build to)	40 ft	33 ft
Traveled way (build to)	18 ft, two 9 ft lanes	12 ft, one shared lane
Design speed	25 mph	15 mph
Curb return radius	25 ft	15 ft
Surface	Paved or gravel	Gravel
Maximum grade	12%	12%
Sight distance	Per Table 3.2	Per Table 3.2

The safety standards – sight distance, maximum grade, drainage – are identical. What differs is width and surface.

Under Section 7.F, a driveway that grows to serve more than two dwellings must be improved to the Type assigned to it. At R2 that means an 18 ft traveled way in a 40 ft right-of-way; at R3 it means a 12 ft shared gravel

surface in a 33 ft right-of-way. **Moving these lanes to R3 substantially reduces what a future owner would have to build.**

WHAT THE BOARD IS NOW ASKED TO DO

First: ratify the classification as it stands – 76 segments at R3, and 72 segments recorded as functioning today as driveways.

Second: decide eleven remaining segments. Eleven privately owned segments still classified R2 serve two homes or fewer on the current record. Under the test as applied to everything else, they would be R3. They were left as they are pending the Board's view.

They fall into three groups:

- **Six serve two homes** – Cottage Road, Deer Meadow Road, Eagle Point Road, Estey Road, Happy Valley Road, and Jackies Way. Two homes is the driveway threshold itself, so these sit exactly on the line.
- **Three serve one home** – Bay View Road, Osprey Point Road, and Sheepscott River Way.
- **Two show no residential address on record** – a second Bay View Road segment, and Dodge Point Road. These are the least certain of the group and may simply need a look on the ground.

This list is down from nineteen at the last revision. Eight of the segments the Board was previously asked about – including Bradley Shore Road, Dickenson Road and Barrol Point Road – have since been recorded as driveways and are no longer open.

Third: an item that is now closed. The last revision asked the Board to resolve an inconsistency: Eden Lane and Camp Road were both private, both showed no residential address, and both were short dead-end ways, yet Camp Road was R3 and Eden Lane was R2. **Both are now recorded as driveways at R3.** Nothing further is needed.

A NEW QUESTION THE FIELD RESEARCH RAISED

The research and the Town's E-911 address data disagree about three of the eleven ways, and the disagreement runs in the direction that matters.

Way	Field research reports	Address points on record
Lucky Lane	Shared driveway, 2 homes	3 residential
Paradise Road	Shared driveway, 2 homes	3 residential
Swallow Hill Road	Driveway, 1 home	3 residential

For all three the address data is unambiguous – three addressed residential structures, none of unrecorded type. Section 7.C.7 provides that an access way serving **more than two** single-family dwellings is no longer a Driveway. On the address record these three are over that threshold; on the field research they are not.

Either source can be wrong. An address point may be assigned to an accessory dwelling, a seasonal camp, or a vacant lot; it may also be assigned to a home that is reached from a different way. Ways of this size are also exactly where the Town's records are thinnest.

The Board should decide these three on the ground rather than on either record. They are currently recorded as driveways. If any of the three does serve three dwellings, it is not a Driveway under Section 7.C.7 and the record should be corrected – the Type would remain R3 either way, so nothing about the standard changes; what changes is whether the way is described as a driveway today.

Nothing turns on this immediately. No obligation arises under Section 7.F unless and until a way is expanded or altered, and the Type is the same in both readings.

TWO ITEMS CARRIED FORWARD

- **Kavanagh Road and Woods Island Road still have no Ownership Category recorded.** Neither matched a State or E-911 jurisdiction record. This needs checking against the Town's own road records.
- **The 11-foot Station Road fragment has been removed** from the Inventory as a mapping artifact. That item is closed.

A NOTE ON HOW THIS CARRIES FORWARD

Every classification recorded here is durable. When the Town's district mapping is finalized and the underlying data is refreshed, these decisions carry forward automatically — no decision has to be made twice, and nothing the Board settles today will need revisiting because of a data update.